

बिड दस्तावेज़ / Bid Document

बिड विवरण / Bid Details	
बिड बंद होने की तारीख/समय / Bid End Date/Time	08-07-2026 11:00:00
बिड खुलने की तारीख/समय / Bid Opening Date/Time	08-07-2026 11:30:00
बिड पेशकश वैधता (बंद होने की तारीख से) / Bid Offer Validity (From End Date)	180 (Days)
मंत्रालय/राज्य का नाम / Ministry/State Name	Ministry Of Chemicals And Fertilizers
विभाग का नाम / Department Name	Department Of Fertilizers
संगठन का नाम / Organisation Name	National Fertilizers Limited (nfl)
कार्यालय का नाम / Office Name	Nfl Panipat
शिकायत निवारण के संपर्क विवरण / Contact details of Grievance redressal	abhinavsachdeva@nfl.co.in
कुल मात्रा / Total Quantity	2
वस्तु श्रेणी / Item Category	Supply of EOT Crane As per Item Sr. No. 1 of Buyer Specification Document , Installation, assembly, errec & comm and testing of crane as per Item sr. no. 2 of Buyer Spec Doc
GeMARPTS में खोजी गई स्ट्रिंग्स / Searched Strings used in GeMARPTS	Installation, assembly, erection & commissioning and testing of EOT crane package at site. (Scope as per Annexure-B)
GeMARPTS में खोजा गया परिणाम / Searched Result generated in GeMARPTS	Category not available on GeM for the text string uploaded by the buyer
अधिसूचना के लिए चयनित प्रासंगिक श्रेणियाँ / Relevant Categories selected for notification	EOT Crane
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / MSE Relaxation for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / Startup Relaxation for Years of Experience and Turnover	No
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या / Minimum number of bids required to disable automatic bid extension	2

बिड विवरण/Bid Details	
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	7
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	1
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	No
बिड का प्रकार/Type of Bid	Two Packet Bid
प्राथमिक उत्पाद श्रेणी/Primary product category	Supply of EOT Crane As per Item Sr. No. 1 of Buyer Specification Document
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	3 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
Payment Timelines	Payments shall be made to the Seller within 30 days of issue of consignee receipt-cum-acceptance certificate (CRAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	Yes (Arbitration clause document) as per DoE OM No.F.1/2/2024-PPD dated 03.06.2024 Arbitration should not be routinely included in contracts
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

एडवाइजरी बैंक/Advisory Bank	ICICI
ईएमडी राशि/EMD Amount	100000

ईपीबीजी विवरण /ePBG Detail

एडवाइजरी बैंक/Advisory Bank	ICICI
ईपीबीजी प्रतिशत (%) /ePBG Percentage(%)	5.00
ईपीबीजी की आवश्यक अवधि (माह) /Duration of ePBG required (Months).	29

(a). जेम की शर्तों के अनुसार ईएमडी छूट के इच्छुक बिडर को संबंधित कटेगरी के लिए बिड के साथ वैध समर्थित दस्तावेज प्रस्तुत करने है। एमएसई

केटेगरी के अंतर्गत केवल वस्तुओं के लिए विनिर्माता तथा सेवाओं के लिए सेवा प्रदाता ईएमडी से छूट के पात्र हैं। व्यापारियों को इस नीति के दायरे से बाहर रखा गया है।/EMD EXEMPTION: The bidder seeking EMD exemption, must submit the valid supporting document for the relevant category as per GeM GTC with the bid. Under MSE category, only manufacturers for goods and Service Providers for Services are eligible for exemption from EMD. Traders are excluded from the purview of this Policy.

(b).ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

(c).ईएमडी और संपादन जमानत राशि लाभार्थी के पक्ष में होनी चाहिए। / Earnest Money Deposit (EMD) shall also be accepted by the buyer in the form of a surety bond.

लाभार्थी /Beneficiary :

Govt. of India Undertaking
National Fertilizers Limited, Gohana Road, Panipat, Haryana-132106
(National Fertilizers Limited Panipat)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई खरीद वरीयता / MII Purchase Preference

एमआईआई खरीद वरीयता / MII Purchase Preference	Yes
मेक इन इंडिया विक्रेताओं को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ तक की सीमा में है / Purchase Preference to MII sellers available upto price within $L1+X\%$	20
मेक इन इंडिया खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Maximum Percentage of Bid quantity for MII purchase preference	100
सार्वजनिक खरीद (मेक-इन-इंडिया को प्राथमिकता) आदेश 2017 के अनुसार केवल क्लास 1/क्लास 2 के स्थानीय आपूर्तिकर्ताओं को ही भागीदारी की अनुमति है दिनांक 16.09.2020 (समय-समय पर संशोधित एवं लागू) / Allow participation only from Class 1/Class 2 local suppliers as per the Public procurement(Preference to Make-in-india) order 2017 date 16.09.2020(as amended and applicable time to time)	Yes, in compliance with the MII ORDER : DPIIT Order(as amended and applicable time to time)

एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	100

ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details

This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to avail payment through TReDS are required to be registered with at least one TReDS exchange in which the buyer is registered.

1. Preference to Make In India products (For bids < 200 Crore): Preference shall be given to Class 1 local supplier as defined in public procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued by concerned Nodal Ministry for specific Goods/Products. The minimum local content to qualify as a Class 1 local supplier is denoted in the bid document. If the bidder wants to avail the Purchase preference, the bidder must upload a certificate from the OEM regarding the percentage of the local content and the details of locations at which the local value addition is made along with their bid, failing which no purchase preference shall be granted. In case the bid value is more than Rs 10 Crore, the declaration relating to percentage of local content shall be certified by the statutory auditor or cost auditor, if the OEM is a company and by a practicing cost accountant or a chartered accountant for OEMs other than companies as per the Public Procurement (preference to Make-in -India) order 2017 dated 04.06.2020. Only Class-I and Class-II Local suppliers as per MII order dated 4.6.2020 will be eligible to bid. Non - Local suppliers as per MII order dated 04.06.2020 are not eligible to participate. However, eligible micro and small enterprises will be allowed to participate .The buyers are advised to refer the OM No.F.1/4/2021-PPD dated 18.05.2023.

[OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017 and its subsequent Orders/Notifications issued by concerned Ministry .Benefits of MSE will be allowed only if seller/service provider is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

2. **Purchase preference to Micro and Small Enterprises (MSEs):** Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 100% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

Supply Of EOT Crane As Per Item Sr. No. 1 Of Buyer Specification Document (1 pieces)

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

तकनीकी विशिष्टियाँ /Technical Specifications

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Sudhanshu Ranjan Srivastava	132106,National Fertilizers Limited (A Government of India Undertaking) Gohana Road, Panipat Haryana - 132106	1	180

Installation, Assembly, Erec & Comm And Testing Of Crane As Per Item Sr. No. 2 Of Buyer Spec Doc (1 Lot)

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

तकनीकी विशिष्टियाँ /Technical Specifications

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Sudhanshu Ranjan Srivastava	132106,National Fertilizers Limited (A Government of India Undertaking) Gohana Road, Panipat Haryana - 132106	1	240

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

A. Scope of work: as per bid document.

B. Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

C. Provisions of revised "Public Procurement" (Preference to make in India) order 2017 notified vide order no. P- 45021/2/2017-PP (BE-II) dated 19/07/2024 of Ministry of Commerce and Industry, Department of Industrial Policy and Promotion (DIPP) shall be applicable.

Bidders seeking benefits under Purchase Preference to Make in India (linked with local content) shall have to comply with the provisions specified under the revised Public Procurement (Preference to Make in India)

order 2017. The salient features of which are as under:

(a) Minimum local content: - The minimum local content shall be applicable as per latest Government guidelines.

(b) Margin of Purchase Preference: - The margin of purchase preference shall be 20%.

(c) In the event of any Nodal Ministry prescribing higher or lower percentage of purchase preference and/or local content in respect of this procurement, same shall be applicable

The 'Class-I local supplier'/'Class-II Local supplier' at the time of tender, bidding or solicitation shall be required to indicate percentage of local content and provide self-certification that the item offered meets the local content requirement for 'Class-I Local supplier'/'Class-II Local supplier', as the case may be. They shall also give details of the locations (s) at which the local value addition is made.

In cases of procurement for a value in excess of Rs. 10 crores, the 'Class-I local supplier shall be required to provide a certificate from the statutory auditor or cost auditor of the company (in the case of companies) or from a practicing cost accountant or practicing chartered accountant (in respect of suppliers other than companies) giving the percentage of local content.

A supplier who has been debarred by any procuring entity for violation of this Order shall not be eligible for Purchase Preference under this Order for procurement by any other procuring entity for the duration of the debarment. A self-certificate to the effect that the bidder has not been debarred by any procuring entity from violation of this order should be enclosed along with techno-commercial bid.

Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make In India) Order, 2017 shall be as per Department of Expenditure O.M. dt d. 18.05.2023.

No exemption/relaxation towards prior experience shall be granted to startups/MSE as the item is of critical nature and required for handling of critical items and machinery.

D. Payment Terms:

Payment terms for supply: 70% of order value for supply portion along with 100% applicable GST will be paid within 30 days of receipt and acceptance of complete material at NFL Panipat site.

Balance 30% of order value for supply portion will be paid upon completion of Installation, Commissioning and Testing (including any modifications done by party to existing site structure/ roof structure and restoring the same to original state) within 30 days after successful Erection, Commissioning and Testing of EOT Crane at site.

In case Installation & commissioning of material is not carried out within 90 days of receipt and acceptance of the complete material for reasons attributable to NFL, then balance 30% of order value for supply portion will be released to the party on submission of unconditional **interest-free** bank guarantee (proforma as per Annexure-E in buyer uploaded ATC document) of equivalent amount. The validity of Bank Guarantee shall be one year, beginning 90 days after the date of acceptance of material at NFL Panipat.

Payment terms for Installation, Commissioning and Testing: 100% payment on completion of Installation, Commissioning and Testing within 30 days after successful Erection, Commissioning and Testing of EOT Crane at site (including any modifications done by party to existing site structure/ roof structure and restoring the same to original state).

E. MSME vendor payment through TReDS:

Gol has introduced electronic platform for facilitating the financing of trade receivables of MSMEs from buyers, through financiers, which is termed as trade receivables Discounting System (TReDS). NFL is already registered on **RXIL/Invoice Mart/M1xchange** TreDS platform.

MSME Bidders are requested to kindly register on the TreDS platforms and avail the TreDS facility, if they want to.

The contact details are as below:

TReDS platform	Contact Person	Mobile	e-mail

RXIL	Anurag Singh	7982459262	Anurag.singh@rxil.in
Invoice Mart	Yash Pal	9646511449	Yash.pal@invoicemart.com
M1xchange	Shreyash Watile	7057527698	Shreyash.watile@m1xchange.com

Bidders upon successful delivery shall submit their invoices along with the mandated enclosures including TreDS details. Upon receipt and acceptance of the supplied material/services and receipt of invoices with the mandated enclosures, NFL shall process the invoice for payment as per details submitted on TreDS platform.

Any unfinanced invoice/s of MSME bidders seeking payment from NFL directly shall be processed as per the standard payment terms agreed in PO/Contract.

All financing cost for using the facility shall be borne by the MSME bidder only.

F. Supplier/ vendor whose turnover exceeds Rs. 5.00 Crore in any financial year from 2017-18, is required to issue E-Invoice as per the provision of Rule 48 of CGST Act, 2017. If the supplier/ vendor fails to comply with the provision of Rule 48, such invoice will not be a valid invoice and the recipient/ buyer will not be entitled to claim the Input Tax Credit of GST paid as per section 16(2)(a). You may kindly specify whether E-invoice provisions are applicable to you.

G. Successful bidder shall provide their latest bank details (valid bank mandate/ cancelled cheque copy/on their letterhead, etc.) at the time of invoice submission.

H. The stipulated delivery period of 6 months (i.e., 180 days) and the time period of 30 days for installation, commissioning, and testing, as specified in Annexure-A, are mandatory requirements. Any bid proposing a longer timeframe for either activity shall be rejected.

I. Tentative period for site handover will be one month after receipt and inspection of supplied material at NFL site along with required documents as per contract terms & conditions; subject to plant operational conditions.

J. Liquidated Damages (as per GeM GTC):

If the Seller/Service Provider fails to deliver any or all of the Goods/Services within the original/re-fixed delivery period(s) specified in the contract, the Buyer will be entitled to deduct/recover the Liquidated Damages for the delay, unless covered under Force Majeure conditions as per GeM GTC, @ 0.5% of the contract value of delayed quantity per week or part of the week of delayed period, until actual delivery or performance, as pre-estimated damages not exceeding 5% of the total contract value without any controversy/dispute of any sort whatsoever. However, in case of inordinate delay maximum deduction shall be 10% of the total contract value.

Note: Inexcusable delays of more than one-fourth (25%) of the completion period specified in the contract shall be treated as inordinate delay(s).

For the purpose of clarity and application of the above Liquidated Damages clause:

- a. LD for supply portion shall be levied after the expiry of delivery period for supply.**
- b. LD for Installation, assembly, erection, commissioning and testing would be applicable after the expiry of the time period for installation, erection, commissioning and testing (including any modifications done by party to existing site structure/ roof structure and restoring the same to original state) from the date of site handover from NFL.**

K. Eligibility Criteria:

Quotation from bidders not meeting the eligibility criteria (attached as Annexure D of buyer uploaded ATC document) shall be rejected.

Bidders shall upload complete, legible and unambiguous documents (duly numbered) asked in the eligibility criteria along with their offer. NFL reserves the right to complete the evaluation on the basis of details furnished.

rnished by the bidder, with or without seeking any additional supporting documents/ clarifications.

No exemption/relaxation towards prior experience shall be granted to startups/MSE as the item is of critical nature and required for handling of critical items and machinery.

L. Bidder shall submit duly filled, signed and stamped self-certifications (as per Annexure-F in buyer uploaded ATC document) on their letter head, along with their offer.

M. Bid Opening Date Extension Requests:

Bidder must ensure to submit their online bids before last date & time for online bid submission. However, in exceptional cases Bidders may request for extension in last date of bid submission at their own risk. For such request they have to give written request through email to abhinavsachdeva@nfl.co.in (Mob: 798820 7126); gauravgoel@nfl.co.in; and intimation of such request on telephone/mobile before last date of bid submission along with justifiable reason for requesting extension.

Upon timely receipt of such request NFL may consider such request depending upon merit of case & NFL requirement of material. Decision of NFL regarding this shall be final.

N. EMD (Earnest Money Deposit)

Tenders must be accompanied by Earnest Money Deposit of Rs. 1,00,000.00. (Rupees One Lakh Only). EMD can be submitted through e-transfer in NFL account through RTGS/NEFT OR Bank Guarantee. Earnest Money BG format shall be as specified on GEM for Bid Security/EMD. Cheques will not be accepted. The Bank Guarantee must be directly sent to NFL by your Bank through regd, AD.

Bank Details of National Fertilizers Limited Panipat:

Bank Name: Bank of India

A/C No: 675130100009001

IFSC Code: BKID0006751

Branch Name: Panipat Branch, Haryana-132103

EMD of successful tenderer shall be refunded after submission of SD-cum-PBG or can also be adjusted against SD-cum-PBG.

O. Security Deposit cum PBG (SD cum PBG)/e-PBG:

Security deposit-cum Performance bank Guarantee will be furnished by the successful tenderer, for the faithful execution & performance of the contract, within 15 days of issue of contract. SD cum PBG will be @ 5 % of contract value. SD cum PBG can be submitted through e-transfer in NFL account through RTGS/NEFT. Cheques will not be accepted.

The successful tenderer will, however, have the option to furnish a Bank Guarantee from any of the Scheduled Bank excluding Gramin/Co-operative Banks, in the Performance specified over GeM Portal for SD cum PBG /e-PBG for the faithful execution & performance of the contract. The Bank Guarantee must be valid till the Delivery period plus tentative period for site handover by NFL plus time period for installation, commissioning, and testing plus maximum Guarantee Period together with claim period of three months. The Bank Guarantee must be directly sent to NFL by your Bank through regd, AD.

P. SFMS CONFIRMATION OF BG:

Bidder/Supplier shall also arrange to send Bank Guarantee (EMD or SD or SD cum PBG /e-PBG or any other applicable BG) advice (including all BG amendments) by their issuing bank through SFMS platform directly to the NFL Banker, i.e. ICICI Bank Ltd., X1, Senior Mall, Sector-18, Noida, UP, 201301, IFSC Code ICIC0000031, as per the following details:

I) IFN 760 COV for issuance of bank guarantee.

II) IFN 767 COV for amendment of bank guarantee.

III) Issuing bank shall mention IFSC Code as ICIC0000031 in field 7035 of IFN 760 COV/ IFN 767COV.

IV) Issuing bank shall mention NFL beneficiary code as “NFLNATIONAL04022015” in field 7037 of IFN 760 COV / IFN 767 COV”.

Q. Adoption of ZED and LEAN Certification Schemes by MSME vendors:

Gol has introduced following certification schemes for boosting the capabilities of MSMEs:

a) MSME Sustainable, Zero Defect Zero Effect (ZED) Certification Scheme (Silver/Gold level): This scheme focuses on encouraging MSMEs to improve their manufacturing processes, reduce defects, enhance product quality and move towards sustainability through minimizing environmental impact.

b) MSME Competitive, Lean Certification Scheme (Intermediate/Advanced Level): This scheme aims to enhance MSMEs productivity, efficiency, and competitiveness by reducing wastages in processes, inventory management, Optimization of space, energy consumption, etc. Importance of ZED and LEAN Certification: The Ministry of Micro, Small & Medium Enterprises, Gol, aims to promote the adoption of ZED and LEAN certification schemes among MSMEs to enhance their competitiveness, productivity, and sustainability.

For more information on the ZED and LEAN Certification Schemes, please visit:

ZED: <https://zed.msme.gov.in/> Lean: <https://lean.msme.gov.in/>

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2. Buyer Added Bid Specific ATC

Buyer uploaded ATC document [Click here to view the file.](#)

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.

11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and
- All operative provisions of the erstwhile Labour Laws until their complete substitution.

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्यवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---

